

United States Department of Agriculture
Justification for Other than Full and Open Competition
Optimal Corrosion Control Treatment (OCCT) system/feed system
Identification Number:1166611/ 1240LT26R0019

Pursuant to the requirements of the Competition in Contracting Act as implemented by Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) FAR Part 6 and in accordance with the requirements of RFO FAR 6.104-1, the justification for the use of the statutory authority cited herein is supported by the following facts and rationale:

(1) Mission Area and Contracting Activity.

[REDACTED] Arapaho & Roosevelt NF & Pawnee NG via the United States Department of Agriculture, Forest Service, Construction and A&E Division, proposes to enter into a contract on a basis of other than full and open competition.

(2) Nature and/or description of the action being approved:

This J&A authorizes and approves the award of a sole-source, firm-fixed price, purchase order, as a follow-on to contract for the procurement of Architectural and Engineering services in support of its Optimal Corrosion Control Treatment (OCCT) system/feed system for the Shadow Mountain Village water system. The design and sequential implementation of the OCCT system is critical to the supply of safe drinking water to the employees and residents at the Shadow Mountain Village Work Center. The requirement for OCCT from CDPHE comes after testing for copper in the water and receiving elevated results. The State of Colorado and the EPA require that an OCCT system be designed and installed on this system due to test results to reduce the potential for corrosion in the system by leaching copper into the drinking water, increasing health risk to employees and residents. The previous action was awarded to Element Engineering however they have since been acquired by the Bowman Consulting Group, however Element still maintains the entire original design team on this project and still maintains an office with the area. Furthermore, the design and subsequent installation must be completed by the end of the year to avoid future State violations.

These services are commercial in nature and will be procured utilizing the procedures listed in FAR Part 36 and FAR Part 6.

The suggested contractor is:

Bowman Consulting Group LTD

(3) A description of the supplies or services required to meet the agency's needs (including the estimated value).

This contract will provide an OCCT Design which is required by the State of Colorado. The design and sequential implementation of the OCCT system is critical to the supply of safe drinking water to the employees and residents at the Shadow Mountain Village Work Center. The requirement for OCCT from CDPHE comes after receiving elevated results of copper in the water. The State of Colorado and the EPA require that an OCCT system be installed on this system due to test results to reduce the potential for corrosion in the system by leaching copper into the drinking water, increasing health risk to employees and residents. however, the first official violation from the State of Colorado however Element has the previous studies, knowledge and contacts with the State on this matter which

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will only expedite this process and result in the system installation sooner within the 2026 calendar year. [REDACTED]

(4) Identify the statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. 2304(c) (1) as implemented by FAR FAR 6.103-1, Only One Responsible Source.

(5) Demonstrate that the proposed contractor's unique qualifications or the nature of the acquisition requires using the authority cited.

The statutory authority permitting other than full and open competition for this procurement applies due to the unique qualifications of the proposed contractor and the nature of the acquisition. The contractor, having provided the initial investigation and proposed plan to the State of Colorado under the previous agreement, possesses expertise and an already in-depth understanding of the violations that have been noted as well as the system needed to resolve said issues. These unique factors are critical to ensuring the continuity and integrity of the new design and implementation of the OCCT system. The previous contract executed was based on the contractor's capability and efficiency in meeting our stringent requirements put on the local Forest Service office by the State of Colorado due to the positive and elevated copper level findings. Transitioning to a new contractor would incur significant duplication of costs and effort, [REDACTED] and delay this project and the construction project needing to be implemented within 4-6 months. The transition to another contractor would involve starting over with the State of Colorado for the establishment of the plan. Furthermore, this would also result in additional set-up time for all contractual actions, additional design team investigation services, establishing communication lines with the State, re-development of a plan for the OCCT system, and even more State of Colorado approval time, only to yield an approved plan that has already been established by the incumbent. These costs are derived from past efforts as actuals related to program initiation and are deemed non-recoupable through competition.

Moreover, the delay in transitioning to another contractor only adds time and cost as the contractor would need that system familiarization periods. Such a delay is unacceptable as it would critically hamper the program's effectiveness, risk employee safety and health and delay the installation of the system even further. This procurement is therefore in line with the Revolutionary FAR Overhaul (RFO) FAR 6.103-1(c)(2) for services, ensuring that the government avoids unnecessary expense and delays.

(6) Provide a description of efforts made to ensure that offers are solicited from as many potential sources as possible, including whether a notice was or will be publicized as required by Part 5 and, if not, which exception under Part 5 applies.

The proposed contract action was not synopsisized per RFO FAR 5.101(b) (2) – Using other than full and open competition (see 6.103), except for the authorities at 6.103-1 (only one responsible source) and 6.103-6 (national security). [REDACTED]
[REDACTED]

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(7) A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer has determined the anticipated cost to the Government of the A&E services covered by this J&A will be fair and reasonable based on a thorough comparison of historical pricing data from the prior contract as well as other comparison to other published A&E rates via GSA and other local FS contracts. The development of an Independent Government Cost Estimate (IGCE) was utilized using current market rates.

(8) A description of the market research conducted, and the results or a statement of the reason Market Research was not conducted.

No market research was conducted as Element Engineering was the only firm involved in the initial work to rectify this issue; therefore, they are the only firm that can pick up quickly where the process was paused and move forward effectively and efficiently without having to start the process over and add excessive time delays.

(9) Any other facts supporting the use of other than full and open competition, such as:

This acquisition is for an OCCT Design, required approval by the State of Colorado. The design and sequential implementation of the OCCT system is critical to the supply of safe drinking water to the employees and residents at the Shadow Mountain Village Work Center. The requirement for OCCT from CDPHE comes after testing for copper in the water and receiving elevated results. The State of Colorado and the EPA require that an OCCT system be installed on this system due to test results to reduce the potential for corrosion in the system by leaching copper into the drinking water increasing health risk to employees and residents.

This requirement must be restricted to Element Engineering via Bowman Consulting due to their unique qualifications and characteristics exclusive to their company as they pertain to this requirement. Due to the health-related concerns to leaching copper into the drinking water, the design, approval by CDPHE, and installation is critical and is needed as soon as possible to mitigate any future health concerns. Element Engineering was contracted in 2019 for the initial project and via their recommendation, received approval of an OCCT system for this water system. They are the authors of the initial CDPHE approved recommendations and calculations from 2019 that are the basis for the current approval and design requirements. Element Engineering has history with how the system works, the water quality, and the site specific needs to pick where the OCCT system was paused by CDPHE in 2019 and can now proceed forward with a design in a timely matter. They do not require the time to get up to speed on the phase or the system specific information allowing them to move forward quickly and efficiently. They have established a report with CDPHE around this system and this corrective action requirement and will be able to provide continuity through the process, ensuring the best and most effective outcome to correct this system health deficiency. Furthermore, transitioning to an alternate source would require substantial engineering efforts, significant time, and financial investments to replicate and validate these proprietary technologies, leading to unacceptable delays and operational risks.

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(10) A listing of the sources, if any, that expressed an interest in the acquisition in writing.

No other sources were sought nor contacted based on the proposed contract action utilizing RFO FAR 5.101(b) (2) – Using other than full and open competition (see 6.103), except for the authorities at 6.103-1 (only one responsible source).

(11) A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition of the supplies or services required.

To enhance competition and remove barriers for subsequent acquisitions of the OCCT system, the agency plans to attempt to conduct regular market research and engage with industry to identify new sources; it is unlikely that these efforts alone will overcome the significant barriers posed by the unexpected copper level findings, but knowing of other specialized firms with capabilities could promote competition. Furthermore, attempts will be made to promote vendor capability development through pre-solicitation briefs and technical workshops, offering performance standards early in the acquisition process. Despite these efforts, creating a genuinely competitive environment may be difficult. The agency will explore incremental acquisition strategies and encourage partnerships and subcontracting to broaden the contractor base. While committed to a continuous review for improvement, the proprietary elements and unique requirements of the program suggest that significant barriers to competition will likely remain

Certifications & Approvals

Technical / Requirements Personnel Certification

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.



Name
Title

Date

Contracting Officer's Certification

I certify that the data supporting the recommended use of other than full and open competition accurate and complete to the best of my knowledge and belief.

LUCAS
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 Digitally signed by LUCAS
DAHLMAN
Date: 2026.04.23 13:27:22
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Name
Contracting Officer

Date